UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

Brendan Ngehsi Newanforbi ,

vs.

A. Derrick , et al. ,

CASE NO: 2:26-CV-00004-DJC-JDP

SUMMONS IN A CIVIL CASE

TO: **A. Derrick, G. Noguchi, Katie Palacios**

Defendant's Address:

YOU ARE HEREBY SUMMONED and required to serve on:

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204

an answer to the complaint which is served on you with this summons, **within 21 days after service of this summons on you,** exclusive of the day of service. If you fail to do so, judgment by default will be taken against you for the relief demanded in the complaint. Any answer that you serve on the parties to this action must be filed with the Clerk of this Court within a reasonable period of time after service.

KEITH HOLLAND

CLERK

/s/ A. Woodson

(By) DEPUTY CLERK

ISSUED ON 2026-01-05 11:54:08
CLERK, USDC EDCA

RETURN OF SERVICE

Service of the Summons and complaint was made by me(1)	DATE
NAME OF SERVER *(PRINT)*	TITLE

Check one box below to indicate appropriate method of service

☐ Served personally upon the defendant. Place where served: _____

_____

☐ Left copies thereof at the defendant's dwelling house or usual place of bode with a person of suitable age and discretion then residing therein.

☐ Name of person with whom the summons and complaint were left: _____

☐ Returned unexecuted: _____

_____

_____

☐ Other (specify) : _____

_____

_____

STATEMENT OF SERVICE FEES

TRAVEL	SERVICES	TOTAL

DECLARATION OF SERVER

I declare under penalty of perjury under the laws of the United States of America that the foregoing information contained in the Return of Service and Statement of Service Fees is true and correct.

Executed on _____ _____

Date *Signature of Server*

_____

Address of Server

UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,
Plaintiff,
v.
AGENT A. DERRICK #6910, Parole Agent,
California Department of Corrections and Rehabilitation,
in his individual capacity;
KATIE PALACIOS, Director,
HOPE Program (Stockton, California),
in her individual capacity;
AGENT G. NOGUCHI #7284, Supervising Parole Agent,
California Department of Corrections and Rehabilitation,
in his individual capacity;
Defendants.
Case No.: 2:26-cv-00004-DJC-JDP

FILED
JAN 12 2026
CLERK, U.S. DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA
BY _____
DEPUTY CLERK

FIRST AMENDED COMPLAINT FOR DAMAGES AND DECLARATORY RELIEF (42 U.S.C. § 1983 – JURY TRIAL DEMANDED)

This First Amended Complaint supersedes the original Complaint filed January 5, 2026.

I. INTRODUCTION

1. This is a civil rights action for damages and declaratory relief under 42 U.S.C. § 1983 arising from retaliation for protected speech, race-based disparate treatment, and arbitrary abuse of supervisory power by parole officials and a state-affiliated mandatory reentry program.

2. Plaintiff BRENDAN NGEHSI NEWANFORBI, a Black male, alleges that Defendants used parole authority and mandatory program requirements to punish constitutionally protected expression, deny employment opportunities, escalate supervision without legitimate basis, and ratify unconstitutional conduct at the supervisory level.

3. Defendant Agent A. Derrick explicitly told Plaintiff: "You do not have freedom of speech. Not in HOPE group you don't." This statement, made at their first meeting in or about January 2025, directly linked Plaintiff's protected speech to threatened adverse consequences and would chill a person of ordinary firmness from continuing to speak.

4. The rights violated were clearly established at the time of Defendants' conduct, and no reasonable parole official could have believed the conduct alleged was lawful. See *Rhodes v. Robinson*, 408 F.3d 559, 567–68 (9th Cir. 2005); *Pratt v. Rowland*, 65 F.3d 802, 806 (9th Cir. 1995) (holding that "the prohibition against retaliatory punishment is 'clearly established law' in the Ninth Circuit, for qualified immunity purposes").

II. JURISDICTION AND VENUE

5. This Court has original jurisdiction over Plaintiff's federal civil rights claims pursuant to 28 U.S.C. §§ 1331 and 1343(a)(3).

6. Venue is proper in the Eastern District of California pursuant to 28 U.S.C. § 1391(b) because a substantial part of the events or omissions giving rise to the claims occurred in this District, and Defendants perform their official duties within this District.

7. Declaratory relief is authorized under 28 U.S.C. §§ 2201–2202.

III. PARTIES

8. Plaintiff BRENDAN NGEHSI NEWANFORBI is a Black male and a resident of Stockton, California. At all times relevant to this Complaint, Plaintiff was subject to parole

supervision by the California Department of Corrections and Rehabilitation ("CDCR") and was required to participate in the HOPE Program as a mandatory condition of parole.

9. Defendant AGENT A. DERRICK #6910 was at all relevant times a Parole Agent employed by CDCR and assigned to supervise Plaintiff. Defendant Derrick acted under color of state law within the meaning of 42 U.S.C. § 1983. Defendant Derrick is sued in his individual capacity.

10. Defendant KATIE PALACIOS was at all relevant times the Director of the HOPE Program at the Stockton, California facility. The HOPE Program is a mandatory parole reentry program operated in coordination with CDCR. Defendant Palacios acted jointly with parole officials, exercised authority over Plaintiff's mandatory program participation, communicated directly with parole agents regarding Plaintiff's conduct and compliance, and made recommendations affecting Plaintiff's parole status. Defendant Palacios therefore acted under color of state law within the meaning of 42 U.S.C. § 1983. See *Rawson v. Recovery Innovations, Inc.*, 975 F.3d 742, 751–53 (9th Cir. 2020). Defendant Palacios is sued in her individual capacity.

11. Defendant AGENT G. NOGUCHI #7284 was at all relevant times a Supervising Parole Agent employed by CDCR with authority to review, approve, reject, or modify parole actions, conditions, and discharge determinations. Defendant Noguchi works from the same parole office building as Defendant Derrick, and the two engage in ongoing coordination regarding parolees under their supervision. Defendant Noguchi personally participated in the constitutional violations alleged herein by: (a) attending the Case Conference/Containment Team Meeting ("CTM") at which Plaintiff complained of retaliation and requested reassignment; (b) signing and imposing new parole conditions on Plaintiff in August 2025; and (c) reviewing and

approving the Discharge Review Report that relied on input from Defendants Derrick and Palacios. Defendant Noguchi acted under color of state law within the meaning of 42 U.S.C. § 1983. Defendant Noguchi is sued in his individual capacity.

IV. FACTUAL ALLEGATIONS

A. Protected Speech in Mandatory HOPE Program

12. As a mandatory condition of parole, Plaintiff was required to attend HOPE Program group sessions at the Stockton facility.

13. In 2024, during HOPE group sessions, Plaintiff engaged in verbal expression and complaints regarding disrespectful treatment by program staff and other participants, as well as concerns about program conditions. Plaintiff's speech concerned his treatment by state actors and was constitutionally protected activity addressing matters of public concern.

14. Plaintiff raised specific concerns including: that he had remained in the HOPE group for approximately five years despite having completed all assigned homework multiple times; that homework was frequently lost by program staff; and that Plaintiff was subjected to group resets due to repeated clinician turnover.

15. Rather than address misconduct by other participants or Plaintiff's legitimate concerns, HOPE Program personnel, including Defendant Palacios, characterized Plaintiff's protected speech as "disruptive," establishing a narrative that equated constitutionally protected complaints with misconduct.

B. Assignment to Agent Derrick and Explicit Speech Suppression

16. In or about January 2025, Plaintiff was assigned to Defendant Agent A. Derrick as his parole agent.

17. At their first meeting, Defendant Derrick stated that Plaintiff's speech in HOPE group was "disruptive" and warned Plaintiff that "it would not be good for you if you didn't stop."

18. When Plaintiff stated that he believed he had freedom of speech, Defendant Derrick replied: "You do not have freedom of speech. Not in HOPE group you don't."

19. This explicit statement constitutes direct evidence of retaliatory motive and would chill a person of ordinary firmness from continuing to engage in protected speech. See *Sampson v. County of Los Angeles*, 974 F.3d 1012, 1020 (9th Cir. 2020) (holding it "clearly established" that "the First Amendment prohibits public officials from threatening... to chill protected speech out of retaliatory animus").

C. Denial of Employment Training and Economic Harm

20. In or about March 2025, Plaintiff received an offer of employment from FedEx Office for the position of Retail Customer Service Associate, with a guaranteed rate of $20.00 per hour and approximately thirty (30) hours per week.

21. The FedEx Office position required Plaintiff to complete mandatory training at a location in Modesto, California, beginning on or about April 1, 2025.

22. Plaintiff requested a temporary accommodation from mandatory HOPE Program attendance in order to complete the required job training. The HOPE Program's attendance rules

required Plaintiff to be present by 6:00 p.m.; late arrival resulted in denial of entry and constituted a parole violation.

23. The HOPE Program maintains a standard 10-minute grace period permitting late arrival without violation. During March and April 2025, Plaintiff legitimately utilized this grace period due to commute time required to travel from FedEx training in Modesto to the HOPE Program in Stockton.

24. Defendants Derrick and Palacios conferred and jointly decided to revoke Plaintiff's grace period. In or about early April 2025, Defendant Derrick informed Plaintiff that the 10-minute grace period was being removed, stating: "You are clearly abusing the 10-minute as an excuse to show up late." This revocation forced Plaintiff to choose between his employment and strict compliance with parole conditions.

25. Defendant Derrick and Defendant Palacios jointly denied Plaintiff's request for accommodation, citing prior accommodations and labeling the request "excessive," despite knowing that the denial would force Plaintiff to choose between his employment and compliance with parole conditions.

26. As a direct result of Defendants' denial of accommodation, revocation of the standard grace period, and coercive enforcement of program attendance, Plaintiff was forced to resign from the FedEx Office position on or about April 17, 2025, in order to avoid the risk of parole violation and incarceration.

27. The denial of accommodation directly contravened the stated rehabilitative purpose of parole supervision and the HOPE Program, which is designed to facilitate

employment and successful reintegration. No legitimate penological goal was advanced by forcing Plaintiff to forfeit lawful employment.

D. CTM Meeting, Request for New Parole Agent, and Escalation

28. At a Case Conference/Containment Team Meeting ("CTM") held in mid-2025, Defendant Derrick presented a negative oral report regarding Plaintiff that focused in substantial part on Plaintiff's speech and demeanor in the HOPE Program.

29. Defendant Palacios characterized Plaintiff as a "ringleader" whose speech encouraged others to speak, further tying Plaintiff's constitutionally protected expression to adverse action and demonstrating that Defendants targeted Plaintiff specifically because of the persuasive effect of his speech.

30. During the CTM meeting, Plaintiff expressly requested a change of parole agent, citing Defendant Derrick's retaliatory conduct and explicit statements regarding Plaintiff's speech. The supervising agent present denied the request on the spot, despite being made aware of the conflict.

31. Defendant Derrick then recommended increasing Plaintiff's supervision level. The supervising agent initially rejected this recommendation, stating that Defendant Derrick should focus on other parolees.

32. Defendant Noguchi was present at this CTM meeting and thus had actual knowledge of: (a) Plaintiff's complaints regarding retaliation; (b) Plaintiff's request for reassignment to a different parole agent; and (c) Defendant Derrick's attempted escalation of supervision.

E. Forced PACT Meeting Attendance

33. Despite having been on parole supervision without major incident for approximately four and a half years, Defendant Derrick required Plaintiff to attend a PACT (Parolee Accountability and Compliance Team) meeting at the parole office. PACT meetings are typically reserved exclusively for parolees recently released from prison.

34. This requirement served no legitimate supervisory or rehabilitative purpose given Plaintiff's extensive compliance history and duration on parole, and constituted additional punitive escalation of Plaintiff's conditions.

F. Supervisory Ratification and Addition of New Conditions

35. In or about August 2025, Defendant Derrick presented Plaintiff with new parole conditions that were signed by Defendant Noguchi. These new conditions added restrictions not contained in Plaintiff's original terms of parole.

36. In or about November 2025, a Discharge Review Report was prepared that relied on input from Defendants Derrick and Palacios, including their characterizations of Plaintiff as "disruptive" and a "ringleader." The report recommended continued retention on parole.

37. Defendant Noguchi reviewed and approved the Discharge Review Report, thereby ratifying the underlying retaliatory and arbitrary conduct of Defendants Derrick and Palacios. See *Starr v. Baca*, 652 F.3d 1202, 1207 (9th Cir. 2011) (supervisory liability exists where supervisor "acquiesce[s]" in constitutional deprivation or acts with "reckless or callous indifference" to rights of others).

38. Despite the absence of any new parole violation, Plaintiff was subsequently subjected to twice-monthly parole visits (increased from once per month), substantially increasing the intrusion on Plaintiff's liberty and heightening the risk of technical violations.

G. Chilling Effect on Protected Speech

39. On or about the date Plaintiff was summoned to the parole office to submit to a buccal swab for alcohol testing, Plaintiff entered the parole building intending to engage in protected activity by formally requesting a change of parole agent. Plaintiff obtained a CDCR Form 22 request form from the front desk and proceeded to the second floor to await Defendant Derrick.

40. When Defendant Derrick arrived, he immediately pointed to the Form 22 and asked Plaintiff, "What's that for?" Defendant Derrick then stated, "You're just finding something to complain about, huh?" Plaintiff became visibly nervous and found himself unable to respond. Plaintiff stuttered and could not articulate his request, despite having intended to submit it in writing. Plaintiff did not hand Defendant Derrick the Form 22 and abandoned the request due to fear of further retaliation.

41. Following this incident, Plaintiff experienced a chilling effect on his willingness to speak, complain, or assert his rights in interactions with Defendant Derrick. During subsequent home visits, Plaintiff's heart rate would increase, his hands would visibly shake, and he would experience acute anxiety. Defendant Derrick routinely questioned Plaintiff in an aggressive and argumentative manner and dismissed Plaintiff's responses as untruthful.

42. As a result, Plaintiff began limiting his speech during parole interactions, providing shorter and more compliant answers, avoiding questions or explanations, and refraining from raising concerns or objections. Plaintiff became increasingly quiet during visits in an effort to avoid escalation and to shorten the encounters, particularly when family members were present and Defendant Derrick raised his voice inside Plaintiff's home.

43. Plaintiff's altered behavior was a direct response to Defendant Derrick's conduct and constituted a concrete chilling of Plaintiff's protected speech. Plaintiff curtailed his expression, abandoned written complaints, and refrained from engaging in advocacy or criticism out of fear of retaliation, escalation of supervision, or incarceration.

44. Following the containment meeting, Plaintiff experienced a further chilling of his protected speech within the HOPE program. Shortly thereafter, Plaintiff's assigned clinician abruptly resigned, and Defendant Palacios assumed responsibility for facilitating Plaintiff's group sessions.

45. After the containment meeting and the escalation of Plaintiff's supervision, Plaintiff began engaging in protected activity during HOPE group sessions less and less. Prior to that time, Plaintiff had regularly voiced concerns regarding the structure and administration of the HOPE program. Following the containment meeting, Plaintiff curtailed such speech, limited his participation, refrained from raising concerns or criticisms, and avoided advocating for himself during group sessions out of fear that further speech would be labeled "disruptive" and lead to additional adverse consequences on parole.

46. Plaintiff's reduced participation was noticed by others. Defendant Palacios repeatedly remarked during group sessions that Plaintiff was "doing better," and stated to

Plaintiff that she had been "putting in a good word" for him with his parole agent when asked for status updates. A subsequent clinician, Ms. Jackie, also stated during group sessions that she had observed a noticeable change in Plaintiff's behavior. Other HOPE group participants likewise noticed that Plaintiff spoke less and raised fewer concerns.

47. These group sessions are conducted in rooms equipped with cameras, and Defendant Palacios's statements and Plaintiff's reduced participation occurred in view of those recordings.

48. Plaintiff's change in behavior was not the result of resolved concerns, but rather a deliberate effort to avoid retaliation, escalation of supervision, or punitive consequences. Plaintiff's self-censorship within the HOPE program constituted a concrete chilling of his protected speech.

H. Deliberative Process and Coordination Among Defendants

49. Defendants Derrick and Palacios, along with other HOPE Program staff, routinely met to discuss parolees, including Plaintiff, providing ample opportunity for deliberation on supervision decisions, program compliance, and accommodations. These discussions occurred prior to, during, and after Case Conference/Containment Team Meetings (CTMs).

50. Defendant Derrick and Defendant Noguchi, working from the same parole office building, engaged in ongoing coordination regarding parolee supervision, further evidencing deliberate rather than impulsive decision-making.

51. During this same period (2025), Defendant Palacios exercised discretion to arbitrarily reduce another parolee's mandatory HOPE group attendance from twice-weekly to

once-weekly, demonstrating that flexible accommodations were available within the program yet were knowingly withheld from Plaintiff despite comparable or lesser need.

I. Race-Based Disparate Treatment and Corroborated Comparators

52. Defendants' conduct reflects a pattern of intentional race-based disparate treatment in parole supervision, granting discretionary leniency to white parolees while imposing hostile, escalatory enforcement on Black parolees, including Plaintiff, without legitimate penological justification.

53. Comparator A is a white male parolee supervised by Defendant Derrick in the same Stockton parole office, under identical HOPE Program requirements, supervision level, and timeframe (at least January 2025 to present), with a comparable compliance record and no material differences from Plaintiff. Comparator A received respectful treatment and multiple discretionary accommodations from Defendant Derrick.

54. Specifically, Comparator A received: brief home visits lasting approximately one to two minutes; approval for an overnight trip to Jackson, California (including casino activities) with his girlfriend around late December 2025 or early January 2026, without reprimand, escalation, or additional conditions; and assistance from Defendant Derrick in preparing a CDCR Form 602 grievance to address a parole condition. Defendant Derrick did not speak to Comparator A in a disrespectful manner, did not threaten him with violations, and did not escalate his supervision level.

55. Comparator B is a Black male parolee who was supervised by Defendant Derrick in the same Stockton parole office beginning in early 2023. Comparator B was subject to

standard parole supervision conditions during an overlapping timeframe with Plaintiff and maintained contact with his parole agent as required.

56. Comparator B experienced adversarial and hostile treatment from Defendant Derrick, including: extreme disparaging remarks by Defendant Derrick expressing hostility toward certain offenders, stating words to the effect that such individuals "should be lined up and shot"; arbitrary parole violations including being cited as "out of bounds" while present at public parks during family gatherings, resulting in arrest and custody; unannounced public confrontations perceived as harassing and intimidating; and overall conduct that resulted in significant stress and adverse consequences to Comparator B's liberty.

57. As a result of Defendant Derrick's treatment, Comparator B limited his communication with Defendant Derrick and avoided raising concerns about his supervision out of fear that doing so would result in further adverse action. This mirrors Plaintiff's chilling effect.

58. No legitimate factors—including risk factors or penological concerns—explain the disparity in treatment between Plaintiff and similarly situated white parolees. Plaintiff possesses sworn declarations executed under penalty of perjury pursuant to 28 U.S.C. § 1746 from both Comparator A and Comparator B, based on their personal knowledge, corroborating the pattern of racial disparity. These declarants have expressed willingness to testify under oath. Details will be provided in discovery or upon court order.

59. The pattern of favorable treatment toward white parolees and harsh, hostile treatment toward Black parolees, combined with the pretextual justifications offered by Defendants, supports an inference of intentional discrimination under the factors set forth in

Village of Arlington Heights v. Metropolitan Housing Development Corp., 429 U.S. 252, 265–68 (1977).

60. No reasonable official could believe such racially disparate enforcement was lawful. See *Furnace v. Sullivan*, 705 F.3d 1021, 1030 (9th Cir. 2013); *Serrano v. Francis*, 345 F.3d 1071, 1077 (9th Cir. 2003) ("Prisoners are protected under the Equal Protection Clause from invidious discrimination based on race").

V. CLAIMS FOR RELIEF

COUNT I

First Amendment Retaliation

(42 U.S.C. § 1983 – Against All Defendants)

61. Plaintiff realleges and incorporates by reference paragraphs 1 through 60 as though fully set forth herein.

62. Plaintiff engaged in constitutionally protected speech by expressing complaints, objections, and concerns regarding his treatment in a mandatory parole program and by state actors. This speech addressed matters of public concern and was protected under the First Amendment.

63. Defendants took adverse actions against Plaintiff, including but not limited to: (a) explicit threats to suppress Plaintiff's speech; (b) denial of reasonable accommodation for job training; (c) revocation of the standard 10-minute grace period in coordination between Defendants Derrick and Palacios; (d) coercive enforcement of program attendance that forced Plaintiff to resign from employment; (e) escalation of supervision from monthly to twice-

monthly visits; (f) imposition of new parole conditions; (g) denial of Plaintiff's request for reassignment to a different parole agent; (h) characterization of Plaintiff as "disruptive" and a "ringleader" in official reports affecting Plaintiff's parole status; and (i) requiring attendance at a PACT meeting reserved for recently released parolees despite Plaintiff's four-and-a-half-year compliance history.

64. Plaintiff's protected speech was a substantial or motivating factor in Defendants' adverse actions. The causal connection is established by: (a) Defendant Derrick's explicit statement linking Plaintiff's speech to threatened consequences; (b) the temporal proximity between Plaintiff's protected speech and the adverse actions; (c) Defendant Palacios's characterization of Plaintiff as a "ringleader" whose speech influenced others; and (d) the pretextual nature of Defendants' justifications.

65. Defendants' conduct chilled Plaintiff's exercise of his First Amendment rights. Plaintiff altered his speech and behavior out of fear of further retaliation, sacrificing his ability to speak freely in a mandatory program in order to avoid punishment, incarceration, or transfer. Plaintiff's chilling is demonstrated by: (a) abandonment of a written Form 22 complaint due to nervousness and fear; (b) physiological symptoms of anxiety during parole visits, including increased heart rate and shaking hands; (c) providing shorter, more compliant answers during interactions; (d) curtailed participation in HOPE group sessions; and (e) third-party observations by Defendant Palacios, clinician Ms. Jackie, and other participants that Plaintiff spoke less and raised fewer concerns.

66. Defendants' adverse actions did not advance any legitimate penological or supervisory goal. To the contrary, the denial of employment accommodation undermined the

rehabilitative purpose of parole supervision, and the escalation of supervision was imposed without any new violation. See *Johnson v. Ryan*, 55 F.4th 1167, 1201–02 (9th Cir. 2022).

67. The right to be free from retaliation for protected speech was clearly established at the time of Defendants' conduct. See *Rhodes v. Robinson*, 408 F.3d 559, 567–68 (9th Cir. 2005); *Pratt v. Rowland*, 65 F.3d 802, 806 (9th Cir. 1995); *Brodheim v. Cry*, 584 F.3d 1262, 1269–70 (9th Cir. 2009); *Inouye v. Kemna*, 504 F.3d 705, 712–13 (9th Cir. 2007). No reasonable parole official could have believed that explicitly threatening a parolee for exercising First Amendment rights, denying employment accommodations, or escalating supervision based on protected expression was lawful.

COUNT II

Equal Protection – Race-Based Disparate Treatment

(42 U.S.C. § 1983 – Against Defendants Derrick and Palacios)

68. Plaintiff realleges and incorporates by reference paragraphs 1 through 60 as though fully set forth herein.

69. Plaintiff is a Black male and a member of a protected class under the Equal Protection Clause of the Fourteenth Amendment.

70. Defendants Derrick and Palacios treated Plaintiff less favorably than similarly situated parolees of a different race with respect to: (a) accommodations for employment and scheduling conflicts; (b) supervision frequency and intensity; (c) imposition of additional conditions; and (d) characterization in official reports and communications.

71. As detailed in paragraphs 52 through 60, Comparator A—a white parolee who is similarly situated to Plaintiff, participating in the same HOPE Program, supervised by the same parole agent, and subject to the same parole requirements—received substantially more favorable treatment, including multiple discretionary accommodations such as approval for overnight leisure travel and casino activities, brief respectful visits, and assistance with grievance procedures, without escalation or denial.

72. As detailed in paragraphs 55 through 57, Comparator B—a Black parolee supervised by Defendant Derrick under materially identical conditions—experienced hostile, adversarial treatment mirroring Plaintiff's experience, including extreme disparaging remarks, arbitrary violations resulting in arrest and custody, harassing public confrontations, and a resulting chilling effect on communication with his parole agent.

73. Defendants Derrick and Palacios acted with discriminatory intent, and no rational or legitimate justification explains the disparity in treatment between Plaintiff and similarly situated white parolees. The pretextual justifications offered by Defendants, combined with the pattern of favorable treatment toward white parolees and harsh treatment toward Black parolees, supports an inference of intentional race discrimination. See *Village of Arlington Heights v. Metropolitan Housing Development Corp.*, 429 U.S. 252, 265–68 (1977).

74. Intentional race-based disparate treatment by government officials violates clearly established law. See *Furnace v. Sullivan*, 705 F.3d 1021, 1030 (9th Cir. 2013); *Whren v. United States*, 517 U.S. 806, 813 (1996) ("the Constitution prohibits selective enforcement of the law based on considerations such as race"); *Serrano v. Francis*, 345 F.3d 1071, 1077 (9th Cir. 2003).

COUNT III

Substantive Due Process – Arbitrary Abuse of Power

(42 U.S.C. § 1983 – Against All Defendants)

75. Plaintiff realleges and incorporates by reference paragraphs 1 through 60 as though fully set forth herein.

76. Alternatively and independently of Plaintiff's First Amendment claim, Defendants' conduct violated Plaintiff's right to substantive due process under the Fourteenth Amendment by abusing governmental authority in an arbitrary and oppressive manner.

77. Defendants acted under color of state law with ample opportunity for actual deliberation in a non-emergent context. Routine meetings between Defendant Derrick, Defendant Palacios, and HOPE staff, as well as coordination before and after CTMs and within the shared parole office (Derrick and Noguchi), provided extended time to consider Plaintiff's supervision and alternatives. Their actions were not the result of negligence or split-second decision-making but reflected deliberate indifference to Plaintiff's constitutional rights.

78. Despite the absence of any new parole violations, documented risk, or safety concerns, Defendants knowingly: (a) denied Plaintiff reasonable accommodation for mandatory employment training, while Defendant Palacios simultaneously granted reduced attendance to another parolee in the same program; (b) revoked Plaintiff's standard 10-minute grace period despite its legitimate use for employment; (c) escalated supervision from monthly to twice-monthly visits; (d) imposed additional parole conditions; (e) forced attendance at a PACT meeting inappropriate for Plaintiff's compliance history; and (f) prolonged supervision through a biased Discharge Review Report.

79. Defendants were aware that these coordinated, deliberate actions would sabotage Plaintiff's lawful employment, stability, and rehabilitation—contrary to CDCR's stated goals of facilitating reintegration and employment—yet proceeded despite less restrictive alternatives being available, such as temporary schedule adjustments.

80. At the CTM and through subsequent approvals, Defendant Noguchi had actual knowledge of the underlying conduct yet ratified and imposed heightened restrictions, acquiescing in the oppression.

81. This arbitrary use of parole authority as an instrument of punishment rather than supervision shocks the conscience, was intended to injure Plaintiff without legitimate governmental purpose, and constitutes unconstitutional abuse of power. See *County of Sacramento v. Lewis*, 523 U.S. 833, 846–47 (1998); *Porter v. Osborn*, 546 F.3d 1131, 1137 (9th Cir. 2008) ("Where actual deliberation is practical, then an officer's deliberate indifference may suffice to shock the conscience").

82. No reasonable official could believe such conduct was lawful.

VI. DAMAGES

83. As a direct and proximate result of Defendants' acts and omissions, Plaintiff suffered actual, compensatory, and consequential damages, including but not limited to economic loss, emotional distress, reputational harm, and deprivation of liberty interests.

A. Economic Damages (Past and Ongoing)

84. Plaintiff suffered lost wages and employment opportunities as a result of Defendants' retaliatory and arbitrary conduct. In or about March 2025, Plaintiff received an offer of employment from FedEx Office for the position of Retail Customer Service Associate, with a guaranteed rate of $20.00 per hour and approximately thirty (30) hours per week.

85. Plaintiff began required training on or about April 1, 2025. Defendants denied Plaintiff reasonable accommodation from mandatory HOPE program attendance despite knowing that the training schedule conflicted with rigid program requirements and that late arrival would result in denial of entry and a parole violation.

86. As a direct result of Defendants' denial of accommodation and the coercive enforcement of program attendance, Plaintiff was forced to resign from the FedEx Office position on or about April 17, 2025, in order to avoid the risk of parole violation and incarceration. But for Defendants' denial of accommodation, Plaintiff would have continued employment.

87. Plaintiff suffered past lost wages of no less than approximately $1,500 as a result of this forced resignation.

88. Plaintiff continues to suffer ongoing and future lost income as a result of Defendants' conduct. Mandatory program scheduling and escalated supervision continue to restrict Plaintiff's ability to maintain multiple employment opportunities and to complete full work shifts, resulting in continuing lost income estimated at approximately $600 per week, or approximately $2,600 per month, according to proof.

89. Plaintiff also suffered the loss of training time, professional opportunity, and advancement prospects associated with the FedEx Office position, as well as loss of managerial trust and future employment references.

B. Loss of Liberty and Increased Supervision

90. Defendants imposed increased parole supervision, escalating Plaintiff's required parole visits from once per month to twice per month without legitimate justification or new violation.

91. This escalation constituted a tangible deprivation of Plaintiff's liberty interests, increased Plaintiff's exposure to technical violations, and interfered with Plaintiff's employment, family life, and ability to live without constant fear of punitive consequences.

92. Defendants further threatened Plaintiff with incarceration or forced transfer to another county if his protected speech did not cease, and denied Plaintiff's in-person request for reassignment to a different parole agent despite clear evidence of retaliatory conflict.

C. Emotional Distress and Mental Anguish

93. As a result of Defendants' conduct, Plaintiff suffered significant and ongoing emotional distress, including anxiety, panic, depression, sleep disruption, hypervigilance, and fear of speaking.

94. Following a containment meeting and subsequent escalation of supervision, Plaintiff lived under constant apprehension that any misstep—real or perceived—could result in incarceration or removal from his stable residence. Parole visits became a source of fear and

humiliation, often occurring in a manner that disrupted Plaintiff's household and caused distress to family members.

95. Plaintiff's emotional distress directly interfered with his ability to work and function normally, including causing him to miss scheduled employment on or about December 31, 2025 due to acute anxiety and depression.

96. Plaintiff altered his speech and behavior out of fear of further retaliation, sacrificing his ability to speak freely in a mandatory program in order to avoid punishment. Plaintiff's emotional injuries are ongoing.

D. Reputational and Professional Harm

97. Plaintiff was labeled as "disruptive" and "non-compliant" by HOPE Program staff, and that characterization was communicated to new clinicians and personnel.

98. These labels damaged Plaintiff's professional reputation, undermined trust placed in him by employers, and resulted in the loss of a valuable employment reference from FedEx Office, as well as ongoing stigma associated with Plaintiff's parole record.

E. Punitive Damages

99. Defendants acted willfully, maliciously, and with reckless and callous indifference to Plaintiff's clearly established constitutional rights. See *Smith v. Wade*, 461 U.S. 30 (1983) (punitive damages available for conduct motivated by evil motive or intent, or reckless or callous indifference to federally protected rights).

100. Defendants explicitly referenced Plaintiff's protected speech when imposing adverse consequences, continued retaliatory conduct after Plaintiff objected and requested reassignment, and ratified unconstitutional actions at the supervisory level despite having lawful alternatives available.

101. As a result, Plaintiff is entitled to an award of punitive damages against the individual Defendants in an amount sufficient to punish and deter similar misconduct.

F. Reservation of Proof

102. Plaintiff seeks compensatory and punitive damages according to proof, including interest, costs, and attorneys' fees pursuant to 42 U.S.C. § 1988.

VII. PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGEHSI NEWANFORBI respectfully requests that this Court:

A. Enter judgment in favor of Plaintiff and against Defendants on all claims;

B. Award Plaintiff compensatory damages for economic loss, emotional distress, loss of liberty, and reputational harm, according to proof;

C. Award Plaintiff punitive damages against individual Defendants in an amount sufficient to punish and deter similar misconduct;

D. Issue a declaratory judgment that Defendants' conduct violated Plaintiff's rights under the First and Fourteenth Amendments to the United States Constitution;

E. Award Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;

F. Award Plaintiff pre-judgment and post-judgment interest as allowed by law; and

G. Grant such other and further relief as this Court deems just, proper, and equitable.

VIII. JURY DEMAND

Plaintiff hereby demands a trial by jury on all issues so triable.

Dated: January 12, 2026

Respectfully submitted,

BRENDAN NGEHSI NEWANFORBI

Plaintiff, Pro Se
1455 Cat Tail Drive
Stockton, CA 95204
(209) 801-4442
bnn.cdl@gmail.com

CERTIFICATE OF SERVICE

I, Brendan Ngehsi Newanforbi, hereby certify that on January 12, 2026, I caused a true and correct copy of the **First Amended Complaint** in the above-captioned action, Case No. 2:26-cv-00004-DJC-JDP, to be served via United States Mail, postage prepaid, from Sacramento, California, upon the following Defendants at their last known addresses:

Agent A. Derrick #6910
Parole Agent
California Department of Corrections and Rehabilitation
612 Carlton Avenue
Stockton, CA 95203

Katie Palacios
Director, HOPE Program (Stockton)
5403 N. Pershing Avenue, Suite 200
Stockton, CA 95207

Agent G. Noguchi #7284
Supervising Parole Agent
California Department of Corrections and Rehabilitation
612 Carlton Avenue
Stockton, CA 95203

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on January 12, 2026, at Sacramento, California.

Brendan Ngehsi Newanforbi
Plaintiff, Pro Se
1455 Cat Tail Drive
Stockton, CA 95204
(209) 801-4442
bnn.cdl@gmail.com

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO: NAME: FIRM NAME: STREET ADDRESS: CITY: STATE: ZIP CODE: TELEPHONE NO.: FAX NO. : E-MAIL ADDRESS: ATTORNEY FOR (*Name*):	*FOR COURT USE ONLY*
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE: BRANCH NAME:	
Plaintiff/Petitioner: Defendant/Respondent:	
NOTICE AND ACKNOWLEDGMENT OF RECEIPT—CIVIL	CASE NUMBER:

TO *(insert name of party being served):* _____

NOTICE

The summons and other documents identified below are being served pursuant to section 415.30 of the California Code of Civil Procedure. Your failure to complete this form and return it within 20 days from the date of mailing shown below may subject you (or the party on whose behalf you are being served) to liability for the payment of any expenses incurred in serving a summons on you in any other manner permitted by law.

If you are being served on behalf of a corporation, an unincorporated association (including a partnership), or other entity, this form must be signed by you in the name of such entity or by a person authorized to receive service of process on behalf of such entity. In all other cases, this form must be signed by you personally or by a person authorized by you to acknowledge receipt of summons. If you return this form to the sender, service of a summons is deemed complete on the day you sign the acknowledgment of receipt below.

Date of mailing: _____

_____ ▶ _____

(TYPE OR PRINT NAME) (SIGNATURE OF SENDER—MUST NOT BE A PARTY IN THIS CASE)

ACKNOWLEDGMENT OF RECEIPT

This acknowledges receipt of ***(to be completed by sender before mailing):***

1. ☐ A copy of the summons and of the complaint.
2. ☐ Other *(specify):*

(To be completed by recipient):

Date this form is signed: _____

_____ ▶ _____

(TYPE OR PRINT YOUR NAME AND NAME OF ENTITY, IF ANY, ON WHOSE BEHALF THIS FORM IS SIGNED)

(SIGNATURE OF PERSON ACKNOWLEDGING RECEIPT, WITH TITLE IF ACKNOWLEDGMENT IS MADE ON BEHALF OF ANOTHER PERSON OR ENTITY)

Form Adopted for Mandatory Use
Judicial Council of California
POS-015 [Rev. January 1, 2005]

Code of Civil Procedure,
§§ 415.30, 417.10
www.courtinfo.ca.gov

For your protection and privacy, please press the Clear This Form button after you have printed the form.

Print this form Save this form Clear this form

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO: NAME: FIRM NAME: STREET ADDRESS: CITY: STATE: ZIP CODE: TELEPHONE NO.: FAX NO. : E-MAIL ADDRESS: ATTORNEY FOR (*Name*):	*FOR COURT USE ONLY*
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE: BRANCH NAME:	
Plaintiff/Petitioner: Defendant/Respondent:	
NOTICE AND ACKNOWLEDGMENT OF RECEIPT—CIVIL	CASE NUMBER:

TO *(insert name of party being served):* _____

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